

# BACKGROUND GUIDE

(International Court of Justice)



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## **Welcome to the International Court of Justice**

The International Court of Justice (ICJ) is the principal judicial organ of the United Nations and serves as the world's highest court for disputes between sovereign States. Unlike other committees that focus primarily on diplomacy or policy-making, the ICJ committee challenges delegates to think and argue as international legal practitioners. Delegates are expected to interpret international law, analyse historical evidence, evaluate treaties, and construct persuasive legal arguments based on established legal principles rather than political opinion. The agenda for this committee—Singapore v. Malaysia: The Pedra Branca Island Dispute—is one of the most significant territorial and maritime disputes adjudicated by the ICJ. Although the Court delivered its landmark judgment in 2008, the case remains highly relevant to international law because it illustrates how sovereignty, historical title, effective occupation, treaty interpretation, and maritime entitlement are examined and resolved under international legal principles. The dispute also demonstrates the importance of peaceful settlement of conflicts through judicial mechanisms instead of military confrontation. Throughout this committee, delegates will assume the roles of legal representatives, advisers, and experts tasked with presenting arguments before the Court. Success in this committee depends upon meticulous research, critical legal analysis, and the ability to apply international law to complex factual circumstances. Delegates are encouraged to move beyond political rhetoric and instead rely upon authoritative legal sources, judicial precedents, treaties, official correspondence, maps, and documentary evidence. This Background Guide has been prepared to provide delegates with a comprehensive understanding of the committee, the legal framework governing the dispute, the historical context of the case, and the principal arguments advanced by both Singapore and Malaysia. While it serves as a strong foundation for preparation, delegates are expected to conduct further independent research using the bibliography and additional credible legal sources. We wish every delegate the very best in preparing for this intellectually engaging committee and look forward to witnessing informed, respectful, and thought-provoking debate.

Junior Model United Nations (JMUN) 2026

The Foundation School, Gunjur

International Court of Justice (ICJ)

Letter from the Executive Board

Dear Esteemed Delegates,

It is our pleasure to welcome you to the International Court of Justice (ICJ) at The Foundation School Junior Model United Nations (J MUN) 2026.

On behalf of the Executive Board, we congratulate you on taking part in a committee that demands analytical thinking, legal reasoning, and effective advocacy. Unlike most Model United Nations committees, the ICJ is not a platform for political debate. Instead, it is a judicial forum where delegates are expected to argue cases using international law, treaties, judicial precedents, historical evidence, and well-reasoned legal principles.

This year's agenda, "Singapore v. Malaysia: The Pedra Branca Island Dispute, " offers delegates the opportunity to explore one of the most significant territorial disputes decided by the International Court of Justice. Although Pedra Branca is a small island, the legal issues surrounding sovereignty, effective occupation, maritime entitlement, and State conduct have had a lasting impact on international jurisprudence. As delegates, your role will be to examine these issues critically, evaluate the evidence presented by both parties, and develop persuasive legal arguments grounded in international law. Success in this committee will depend upon thorough preparation. We strongly encourage every delegate to research beyond this Background Guide by consulting the official ICJ Judgment, relevant treaties, historical documents, and scholarly sources. Understanding not only what happened, but also why it happened and how the Court reached its conclusions, will allow you to participate more effectively in committee.

Throughout the conference, we expect delegates to uphold the values of professionalism, diplomacy, respect, and academic integrity. Engage in debate with an open mind, challenge ideas rather than individuals, and support every argument with credible evidence. Remember that the objective of this committee is not simply to defend a position, but to apply international law objectively and arrive at reasoned legal conclusions.

We hope this committee provides you with a deeper appreciation of international law and strengthens your skills in research, public speaking, negotiation, and critical thinking. We look forward to witnessing thoughtful debate, compelling legal advocacy, and meaningful collaboration throughout the conference. We wish you the very best in your preparation and look forward to welcoming you to the International Court of Justice.

Yours sincerely,

Members Of Executive Board

# **The International Court of Justice**

## **1. Establishment**

- Established in 1945 under the United Nations Charter.
- Began functioning in April 1946, replacing the Permanent Court of International Justice (PCIJ).
- It is the principal judicial organ of the United Nations.

## **2. Location**

- Headquartered at the Peace Palace, The Hague, Netherlands.
- It is the only principal UN organ located outside New York.

## **3. Composition**

- Consists of 15 independent judges.
- Judges serve 9-year terms.
- Elections are held jointly by the UN General Assembly and the UN Security Council.
- No two judges may be from the same country.

## **4. Jurisdiction**

The ICJ performs two primary functions:

- Contentious Cases: Resolves legal disputes between sovereign States.
- Advisory Opinions: Provides legal opinions to authorised UN organs and specialised agencies.

## **5. Sources of International Law**

Under Article 38(1) of the Statute of the ICJ, the Court relies on:

- International treaties and conventions.
- Customary international law.
- General principles of law.
- Judicial decisions and legal writings as subsidiary sources.

## **6. Difference Between the ICJ and ICC**

- ICJ ICC Resolves disputes between States.
- Tries individuals accused of international crimes
- Part of the United Nations
- Independent international court
- Deals with civil legal disputes
- Deals with criminal offences such as genocide and war crimes

## **7. Role in the Pedra Branca Case**

- Singapore and Malaysia jointly submitted the dispute to the ICJ in 2003.
- The Court examined historical records, treaties, official correspondence, and State conduct.
- On 23 May 2008, the ICJ awarded Pedra Branca to Singapore, Middle Rocks to Malaysia, and ruled that South Ledge belongs to the State in whose territorial waters it is located.

## **8. Expectations from Delegates**

Delegates should:

- Base arguments on international law.
- Cite treaties and legal principles.
- Present factual evidence
- Respect judicial procedure and committee decorum.
- Rules of Procedure

## **1. Roll Call**

- The committee session begins with a roll call conducted by the Executive Board.
- Delegates must respond with "Present" or "Present and Voting."
- Delegates responding "Present and Voting" must vote either For or against on substantive matters and cannot abstain.

## **2. General Speakers List (GSL)**

- The GSL is the default form of debate.
- Delegates deliver speeches explaining their country's legal position.
- Speaking time is determined by the Executive Board or through a motion.
- Delegates may yield their remaining time to the Chair, another delegate, or questions.

## **3. Moderated Caucus (MOD)**

- A structured debate focusing on one specific issue.
- Requires a motion specifying:
  - Total duration.
  - Individual speaking time.
  - Topic of discussion.
- Delegates speak only when recognised by the Chair.

#### **4. Unmoderated Caucus (UNMOD)**

- Delegates move freely around the committee.
- Used to:
  - Draft directives.
  - Build legal arguments.
  - Share research.
  - Negotiate with other delegations.

#### **5. Points**

Delegates may raise the following points:

- Point of Personal Privilege – For personal discomfort affecting participation.
- Point of Parliamentary Inquiry – To clarify committee procedure.
- Point of Order – To indicate an error in procedure by the Chair.

#### **6. Common Motions**

**Delegates may motion to:**

- Open or close debate.
- Introduce a Moderated Caucus.
- Introduce an Unmoderated Caucus.
- Extend or shorten debate.
- Introduce directives.
- Suspend or adjourn the meeting.

#### **7. Decorum**

Delegates are expected to:

- Maintain professional conduct at all times.
- Address all remarks through the Chair.
- Respect opposing arguments.
- Avoid interruptions unless permitted.
- Use formal parliamentary language.

#### **8. Judging Criteria**

The Executive Board will primarily assess delegates based on:

- Quality of legal research.
- Application of international law.
- Strength of oral arguments.
- Participation during debate.
- Diplomacy and professionalism.
- Teamwork and courtroom etiquette.

# **Legal Teams, Portfolios & Committee Documents**

## **1. Role of Legal Teams**

- Delegates act as legal representatives of their assigned State.
- Their objective is to defend their country's legal position using international law and evidence.
- Arguments should be based on facts, treaties, and judicial precedents rather than political opinions.

## **2. Common Portfolios**

Depending on the committee structure, delegates may serve as:

- Lead Counsel – Presents the primary oral arguments and represents the State before the Court.
- Co-Counsel – Assists the Lead Counsel and presents supporting arguments.
- Legal Adviser – Conducts legal research and interprets international law.
- Historical Researcher – Examines historical events, treaties, maps, and official records relevant to the dispute.

## **3. Responsibilities of Delegates**

Delegates are expected to:

- Conduct comprehensive legal research.
- Present clear and logical arguments.
- Cite relevant treaties and legal principles.
- Respond effectively to questions from the Bench and opposing counsel.
- Work collaboratively with members of their legal team.

## **4. Directives**

- Directives are written documents prepared during committee to organise legal arguments or propose procedural actions.
- They should include:
  - A clear title.
  - The objective of the directive.
  - Supporting legal reasoning.
  - Signatories of the sponsoring delegates.

## **5. Evidence in the ICJ**

Delegates should support their arguments using:

- International treaties and conventions.
- Official diplomatic correspondence.
- Historical maps and archival documents.
- Judgments of international courts.
- Customary international law.
- Government records and official statements.

## **6. Courtroom Etiquette**

Delegates should:

- Address the Executive Board respectfully.
- Speak only when recognised by the Chair.
- Maintain professional language and decorum.
- Respect opposing legal teams and their submissions.
- Base all arguments on credible evidence and international law.

## **7. Key Skills for Success**

Strong delegates will demonstrate:

- Thorough legal research.
- Critical analysis of evidence.
- Confident public speaking.
- Effective teamwork.
- Logical reasoning.
- Professional courtroom conduct.

Delegate Tip: In an ICJ committee, the strongest arguments are those supported by authoritative legal sources. Always explain how a treaty, legal principle, or historical document strengthens your state's case instead of merely citing it.

## **Legal Principles Relevant to the Pedra Branca Dispute**

### **1. Territorial Sovereignty**

- Refers to a State's exclusive legal authority over a territory.
- The ICJ's primary task was to determine whether Singapore or Malaysia possessed sovereignty over Pedra Branca.
- Sovereignty determines which State has the legal right to administer, regulate, and protect the territory.



## **2. Effective Occupation (Effectivities)**

- A principle where continuous and peaceful exercise of State authority strengthens a territorial claim.
- Examples include maintaining infrastructure, enforcing laws,
- conducting patrols, issuing permits, and carrying out official
- activities.
- The ICJ carefully examined which State exercised greater
- administrative control over Pedra Branca.

## **3. Acquiescence**

- Occurs when a State does not object to another State's actions over a prolonged period.
- A failure to protest may be interpreted as acceptance of those actions.
- The Court considered whether Malaysia had objected consistently to Singapore's administration of Pedra Branca.

## **4. Estoppel**

- Prevents a State from contradicting a position or statement upon which another State has reasonably relied.
- The 1953 Johor Letter became significant because it appeared to acknowledge that Johor did not claim ownership of Pedra Branca.
- Singapore argued that this weakened Malaysia's later sovereignty claim.

## **5. Burden of Proof**

- The responsibility lies with each State to provide convincing evidence supporting its claim.
- Evidence may include treaties, historical records, official correspondence, maps, and government actions.
- The Court evaluates both the quality and credibility of the evidence presented.

## **6. Peaceful Settlement of Disputes**

- Under the United Nations Charter, States are encouraged to resolve disputes through peaceful means.
- Instead of military confrontation, Singapore and Malaysia jointly referred the dispute to the ICJ in 2003.
- The Pedra Branca case is widely regarded as an example of
- successful peaceful dispute resolution under international law.

## **7. Importance in This Agenda**

- These legal principles formed the basis of the ICJ's 2008 Judgment.
- Delegates should apply these concepts when analysing evidence and constructing legal arguments.
- A strong understanding of these principles will enable delegates to argue their assigned State's case effectively before the Court.

## **Historical Background**

### **1. Strategic Importance of Pedra Branca**

- Pedra Branca is a small granite island located at the eastern
- entrance of the Singapore Strait.
- Despite its size, it occupies one of the busiest maritime routes in
- the world, making it strategically important for navigation, trade,
- and maritime security.
- The dispute also concerns the nearby features of Middle Rocks and South Ledge.

### **2. Early Historical Claims**

- Before the nineteenth century, the waters surrounding Pedra Branca
- were controlled by the Sultanate of Johor, a powerful Malay
- kingdom that exercised influence over much of the region.
- Malaysia later argued that Pedra Branca formed part of Johor's historic territory and that sovereignty passed to the modern Malaysian State after independence.

### **3. British Presence and Horsburgh Lighthouse**

- In 1844, the British sought permission from the Sultan of Johor to construct a lighthouse on Pedra Branca to improve the safety of ships navigating the Singapore Strait.
- The Horsburgh Lighthouse was completed and began operations in 1851.
- Singapore argued that Britain and, later, Singapore continuously administered and maintained the lighthouse without objection,
- demonstrating effective occupation of the island.

### **4. Emergence of the Dispute**

- For many decades, neither State openly challenged the administration of Pedra Branca.
- The dispute gained prominence after Malaysia published a map in 1979 showing Pedra Branca within its territorial waters.
- Singapore formally rejected this claim, leading to a prolonged
- diplomatic disagreement between the two countries.

## **5. Submission to the International Court of Justice**

- After years of unsuccessful bilateral negotiations, Singapore and
- Malaysia agreed in 2003 to submit the dispute to the International Court of Justice (ICJ).
- The Court examined treaties, historical records, official correspondence, maps, and evidence of State conduct before delivering its Judgment on 23 May 2008.

## **6. Significance of the Case**

- The Pedra Branca dispute is regarded as one of the most influential territorial cases in modern international law.
- It demonstrated how sovereignty can be determined through historical evidence, State practice, and legal principles rather than the use of force.
- The case continues to be studied as an example of the peaceful settlement of international disputes through judicial means.

### **Pedra Branca Dispute – Key Points**

- **1513:** Pedra Branca was first mentioned in Portuguese records as an important maritime landmark.
- **1824:** The Anglo-Dutch Treaty divided spheres of influence between Britain and the Netherlands in Southeast Asia.
- **1844:** Britain obtained permission from Johor to construct the Horsburgh Lighthouse.
- **1851:** Horsburgh Lighthouse became operational and was administered by Britain.
- **1953:** Johor stated that it did not claim ownership of Pedra Branca.
- **1979–1980:** Malaysia claimed Pedra Branca on its map, and Singapore formally protested.
- **2003:** Both countries agreed to submit the dispute to the International Court of Justice (ICJ).
- **2008 ICJ Judgment:**
  - Pedra Branca → Singapore
  - Middle Rocks → Malaysia
  - South Ledge → State within whose territorial waters it lies.

### **Important Legal Principles**

- Historical ownership
- Effective occupation
- Territorial sovereignty
- Acquiescence and estoppel
- Peaceful settlement of disputes

### **Key Takeaway**

The ICJ decided the case based on historical evidence, official documents, and state actions—not geographical proximity alone.